



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**May 06, 2022**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 21349

**EXPIRATION DATE: 2024-02-29**

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Veolia Es Technical Solutions L.l.c.  
Boston, MA
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the one-time, one-way transportation in commerce of non-DOT specification cylinders conforming to specification DOT 39 except that they are not equipped with pressure relief devices, for the purpose of disposal. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
  - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
  - d. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.301(f) in that the cylinder does not have a pressure relief device and § 173.305 in that compressed gases that are a non-poisonous, non-flammable and non-corrosive aerosol formulation are not authorized.
5. BASIS: This special permit is based on the application of Veolia Es Technical Solutions L.l.c. dated March 10, 2022 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous Materials Description |                        |                       |               |
|---------------------------------|------------------------|-----------------------|---------------|
| Proper Shipping Name            | Hazard Class/ Division | Identification Number | Packing Group |
| Compressed gas, n.o.s*          | 2.2                    | UN1956                | N/A           |

\* Non-poisonous, non-flammable, and non-corrosive aerosol formulation pressurized with nitrogen.

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Prescribed packaging is a seamless non-DOT specification cylinder conforming to DOT Specification 39 cylinder except that it does not have a pressure-relief device. The cylinder was previously authorized for transportation under (expired) SP 4052. The cylinder has a volumetric capacity not exceeding 35 fluid ounces and a minimum bursting pressure of 300 psig.
- b. Liquid contents of cylinder may not fill more than 55 percent of volumetric capacity (510 ml) at 70 °F; nitrogen gas to occupy the remaining volume at a pressure not exceeding 80 psig at 70 °F. The cylinder may not be liquid full at 130 °F.
- c. The safety relief device requirement prescribed in § 173.301(f) is waived.
- d. The cylinders must be packed in strong non-bulk outer packagings. The outside of the of the combination packaging must be marked "INSIDE PACKAGING CONFORMS TO DOT-SP 21349".

8. OPERATIONAL CONTROLS: The special permit authorizes a one-time one-way shipment originating from PPG Industries, Inc. in Allison Park, PA. Veolia will be the first transporter of the shipment and will deliver the cylinder to Veolia's facility in West Carrollton, OH. Veolia in West Carrollton, OH will then remanifest the cylinder which will be picked up and transported by Basin Transportation to its final destination in Sauget, IL.9. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
10. MODES OF TRANSPORTATION AUTHORIZED: Highway
11. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
12. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

13. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "D. Schoonover", is written over a faint circular stamp.

for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Kenny Herzog